

IN THE SUPREME COURT OF SEYCHELLES

Civil Side: DC 116/2014

[2014] SCSC 406

GENEVIEVE GISELLE LEOPOLD BORN HOAREAU

Petitioner

versus

CURTIS LUKE LEOPOLD

Respondent

Heard: 22nd October 2014

Counsel: Mr. Vidot for petitioner

Respondent- Unrepresented/ Present

Delivered: 22nd October 2014

JUDGMENT

D. Karunakaran, Acting Chief Justice

[1] This is a petition for divorce. The petitioner has applied to this Court for dissolution of her marriage on the ground that the marriage has irretrievably broken down since the parties had lived apart for a continuous period of more than one year immediately proceeding the

presentation of the petition and the respondent has consented to the grant of divorce. The respondent was duly served with the petition appeared in court and informed the court that he was not contesting the petition. Therefore, the court granted leave for the Petitioner to proceed with an ex-parte hearing in this matter.

[2] In a nutshell, the petitioner testified that she was lawfully married to the respondent in Seychelles on the 4th of June 2009 as per Exhibit P1. At the time of the marriage the petitioner was a spinster whereas the respondent was a bachelor. After the marriage the parties lived and co-habited at Belombre, Mahe, Seychelles. Both parties are Seychellois national domiciled and resident in Seychelles. There has been one born of the marriage namely :

(i) Ember Irene Yolanda Leopold born on the 14th of July 2013 as per Exhibit P1.

[3] There has been no previous court proceeding in respect of the said marriage in any court either in Seychelles or elsewhere. The petitioner categorically testified that the marriage has irretrievably broken down since the parties have lived apart and separate for more than a year prior to the filing of this petition. Moreover she testified that all attempts of reconciliation have failed. In the circumstance, the petitioner seeks this Court for a dissolution of her marriage.

[4] On the strength of the uncontrovertible evidence adduced by the petitioner I am satisfied more than a balance of probabilities that the marriage in question has irretrievably broken down. I am equally satisfied there is no possibility of reconciliation between the parties. Therefore I find it just and necessary that the marriage should be dissolved and I do so accordingly.

[5] Therefore, I hereby dissolve the marriage of the parties and grant a conditional order of divorce, which may be made absolute after the expiry of six weeks from the date hereof.

[6] The petition is granted accordingly. File closed.

Signed, dated and delivered at Ile du Port on 22nd October 2014.

D Karunakaran
Acting Chief Justice

LEAD AGENCY: ~~_____~~ City of Desert Hot Springs
~~_____~~ 65950 Pierson Boulevard
~~_____~~ Desert Hot Springs, California 92240

CONTACT PERSON: ~~_____~~ Patricia Villagomez, Associate Planner, (760) 329-6411

PROJECT LOCATION: ~~_____~~ East of Cabot Road, and north of 15th Avenue
~~_____~~ Assessor's Parcel Number 665-070-003.

PROJECT DESCRIPTION: ~~_____~~ The project proposes the development of a cultivation facility on approximately 3.77 net acres of vacant land in the City of Desert Hot Springs. The cultivation facility will include three, one-story buildings for the cultivation and processing of cannabis in accordance with the Desert Hot Springs Municipal Code 5.50 and 17.180. Project implementation will include the development of a 10,026-square-foot building for offices and the processing of cannabis, and two 14,994 square foot greenhouses, for a total of a building area of 40,014 square feet (sf) at total buildout. Access to the site will occur from two gated points on Cabot Road. The project proposes to provide 36 parking spaces, 4 of which are designated as ADA parking stalls. Associated improvements include curb and gutter, sidewalks, and landscaped areas. The site is currently vacant and undisturbed, and characterized by scattered desert vegetation. The project is located in the Light Industrial district in the City of Desert Hot Springs, where similar uses currently exist.

FINDINGS/DETERMINATION: ~~_____~~ The City has reviewed and considered the proposed project and has determined that no significant impacts will occur with implementation of the project's mitigation measures. The City hereby prepares and proposes to adopt a Mitigated Negative Declaration (MND) for this project. ~~_____~~

PUBLIC REVIEW PERIOD: ~~_____~~ A 30-day public review period for the Draft Mitigated Negative Declaration will commence on June 7, 2021 and end on July 7, 2021 for interested individuals and public agencies to submit written comments on the document. Any written comments on the Mitigated Negative



**~~CITY OF DESERT HOT SPRINGS
PUBLIC NOTICE OF AVAILABILITY &
NOTICE OF INTENT TO ADOPT A MITIGATED
NEGATIVE DECLARATION
DOS CABEZAS CULTIVATION~~**

~~Declaration must be received at the above address within the public review period. In addition, you may email comments to the following address pvillagomez@cityofdhs.org. Copies of the Initial Study are available for review at the above address and on the City's website at <https://www.cityofdhs.org/public-hearing-notices>.~~